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CASE #	CASE NAME	HEARING NAME
CVRI2506468	CREDITORS ADJUSTMENT BUREAU VS BONADIMAN WATER	MOTION TO SET ASIDE DEFAULT, DEFAULT JUDGMENT ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY BY BONADIMAN WATER

Tentative Ruling:

C.C.P. §473.5 authorizes the court to grant relief where there has been proper service of summons, but defendant did not get actual notice of the action in time to defend. This relief is usually sought when service was made by publication or by substitute service.

Relief under C.C.P. §473.5 must be sought within a “reasonable time” and in no event later than two years after entry of default judgment or 180 days after service of written notice that default or default judgment has been entered, whichever comes first. (C.C.P. §473.5(a); Trackman v. Kenney (2010) 187 Cal.App.4th 175, 180.) This motion was filed 11 days from entry of default. The motion is timely.

Section 473.5 applies only to defaults and default judgments and does not apply to other types of judgments. Section 473.5 is a procedural remedy by which a default or default judgment may be set aside; it does not apply to other types of judgments. (Conseco Marketing, LLC v. IFA & Ins. Services, Inc. (2013) 221 Cal.App.4th 831, 844.)

The notice of motion must be accompanied by a declaration showing defendant’s lack of actual notice and that this lack of notice was not caused by his or her avoidance of service or inexcusable neglect. (C.C.P. §473.5(b); Anastos v. Lee (2004) 118 Cal.App.4th 1314, 1319.) The defendant must also file with the notice of motion a copy of the answer, motion or other pleading proposed to be filed in the action. (C.C.P. §473.5(b).) Moving party has satisfied these requirements.

The defendant must show that their lack of actual notice was not caused by inexcusable neglect or avoidance of service. (Tunis v. Barrow (1986) 184 Cal.App.3d 1069, 1077-1078.) The Court is convinced that there was no inexcusable neglect or avoidance.

Accordingly, the motion to set aside the entry of default/default judgment is **granted**. Defendant is ordered to file their Answer within 10 days of this order. The matter is set for a Case Management Conference on 8/25/2026 at 8:30 a.m. in Dept. 6. All other hearings are vacated.